

ER Decision Checklist

A practical guide for managers when misconduct may have occurred

When misconduct may have occurred, work through these five steps in order. The goal is not to react quickly, but to respond fairly, consistently and confidently.

1. Understand What Happened

- ☐ Gather facts
- ☐ Verify information
- ☐ Avoid assumptions

Ask: What happened? What do I know for certain? What information am I still missing?

2. Identify the Rule or Duty

- ☐ Check policies
- ☐ Check expectations
- ☐ Consider Common Law Duties

Ask: Which policy, standard or Common Law Duty may have been breached?

3. Check Fairness

- ☐ Was there a rule?
- ☐ Was the employee aware?
- ☐ Was the rule broken?
- ☐ Was the rule applied consistently?
- ☐ What is the appropriate response?

A fair decision is based on facts, consistency and appropriate judgement.

4. Decide the Response

- ☐ Focus on correction
- ☐ Apply standards consistently
- ☐ Select the appropriate action

Remember: discipline is intended to correct behaviour and maintain standards, not to punish.

5. Escalate When Required

Contact the Fuse when:

- ☐ A Final Written Warning may be required
- ☐ Dismissal may be a possible outcome
- ☐ A Shop Steward is involved
- ☐ You are uncertain of the appropriate action

Remember

Gather the facts. Follow the process. Apply fairness. Focus on improvement. Seek support when needed.

Good managers don't react. They make fair, informed decisions.